IMMIGRANT WORKERS' HEALTH & SAFETY TRAIN THE TRAINER ▪ INTRODUCTION

This Train-the-Trainer Program was designed to orient community activists and leaders on the basics of workplace health and safety:

(1) Identifying hazards at the workplace,
(2) Understanding how such hazards can impact workers' health,
(3) Basics on workers' legal rights to a safe and healthy workplace, and
(4) Tools for workers to develop their own solutions in the workplace.

The training was developed based in the experiences of the membership of Make the Road New York – for low-wage Latino immigrant workers, many of whom are undocumented. They work in businesses including restaurants, delis and groceries, small factories, non-union construction, retail, home health care, domestic work, among others. Many work in very small businesses – often with 10 or fewer employees. Few enjoy the protections afforded by a union in their job.

For many, unsafe working conditions are a routine reality on the job – as is the real risk of retaliation, if workers speak out to the boss. Likewise, for many supporting families here and in their home country, an unsafe job may seem better than the risk of no job at all.

It is in this context that we hope to arm community leaders with a realistic, relevant orientation around health and safety issues. There is an emphasis in this training on group work and group problem solving – and a goal to identify those steps workers can take together to improve their working conditions, with or without the knowledge or support of the boss. It is important for workers to understand that the law protects them against retaliation for complaining about unsafe conditions, regardless of immigration status. However, workers should also understand that if they are fired in retaliation, it may be difficult to win their job back if they lack status. Likewise, workers should also understand that the law affords fairly narrow protections for refusing to perform work that is unsafe.

Where unsafe working conditions exist, the goal is to help workers connect to resources such as community organizations like Make the Road – so workers can get the support and back-up to take action, including reporting conditions to government agencies such as OSHA, the federal Occupational Safety and Health Administration.

This program is designed for workers with varying levels of formal education and literacy in their native language. Group participatory activities, pictures, and other formats ensure that all workers can actively and equally participate in the exercises.

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Finally, this training covers the most fundamental rights of workers under the federal OSH Act, and is intended for workers who work primarily in what OSHA classifies as "miscellaneous." OSHA issues very detailed regulations for many specific jobs, and many specific hazards, that are beyond the scope of this training. For more detailed information to supplement these exercises, trainers are encouraged to read the **Introduction to OSHA Instructor Guide** published by OSHA on its website.[1] The OSHA website has many useful resources for workers as well.[2]

About Make the Road New York:
Make the Road New York is a community-based nonprofit organization with centers in Brooklyn, Queens, Staten Island, and Suffolk County Long Island, New York. Make the Road New York builds the power of Latino and working class communities to achieve dignity and justice through organizing, policy innovation, transformative education, and survival services. The organization's nearly 9,000 members – primarily low-income Latino immigrants – tackle the key issues facing their communities, including workplace justice, tenants' rights, civil rights, public education, health care access, adult literacy, and workforce development. For more than 14 years, Make the Road has focused in particular on helping low-wage immigrant workers enforce their most basic rights on the job – from receiving the minimum wage and overtime to ensuring a healthy and safe work environment. This training is designed to help organizations across the country work with community leaders and activists, to learn about workers' rights to a safe work environment and strategies to protecting their own safety and health.

Acknowledgments:
Make the Road New drew from many wonderful resources to create this training. In particular, the exercises with graphics included below are modified from similar exercises included in the English as a Second Language curriculum created by the New York Committee on Occupational Safety & Health (NYCOSH) entitled *Taking Action for a Safe Workplace: Materials for English Language Learner Teachers* (2005). Many thanks as well to the people who contributed their ideas, time, and energy to this project, including in particular Luzdary Giraldo, Angela Villanueva, Nycole Garcia, Hilary Klein, and Amy Carroll.

[1] See www.osha.gov/dte/outreach/intro_osha/intro_to_osha_guide.pdf. For other useful handouts and information, see also www.osha.gov/dte/outreach/teachingaids.html. Also visit the website of the Centers for Disease Control for more information. http://www.cdc.gov/Workplace/.
[2] http://www.osha.gov/workers.html

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TRAINER TIPS & PREPARATION

Before you hold the training, think through the following in preparation:

✓***Work Space***

OK

Know the space in which you will hold the training. It is best to have the group sit in a circle for large group activities. For small group work, make sure there is sufficient space for people to spread out.

✓***Managing Questions:***

Post a large sheet of butcher paper at the start of the day, labeled "**Questions**" or "Preguntas" (in Spanish). Encourage participants to ask questions as you proceed. If a question is not related to the immediate topic, or if you do not know the answer yourself, have them write the question up on the sheet (or write it for them, if they do not feel comfortable writing). At the end of the training, run through the list and see how many questions are not yet answered. Prepare to return with an answer yourself, or assign research to participants.

✓***Group Dynamic***

Establish a practice to encourage "Step Up/Step Back." Participants who speak often should be encouraged to "step back" so others may contribute. Participants who are shy about offering ideas should be encouraged to "step up." In group discussions, wait to call on someone a second time until all others have had a chance to speak. Also consider gender balance – ensure that all participate equally in group discussions.

✓***Ground Rules***

Have the group establish ground rules that you write up at the front of the room. Good rules include shutting off cell phones, respect for everyone's ideas, "one voice" (only one person speaks at a time), and maintaining the confidentiality of what is shared in the group.

✓***Visuals***

It is very useful to post visuals and information around the meeting space. You can post "teasers" – such single-word signs including "OSHA," "HAZARD," and "SAFE," as well as signs with statistics you will review (injury rates, etc.).

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AGENDA & PLAN FOR TRAINING

The following agenda is intended to take approximately 10 hours to complete. It can be shortened, and completed in a single day, or broken into two portions spread over two days.

DAY ONE – APPROX. 5 HOURS

1) INTRODUCTIONS & OVERVIEW — 35 MINUTES

a. Introduce yourself & role with the organization
b. Introduce the host organization, e.g.:

Make the Road New York builds the power of Latino and working class communities to achieve dignity and justice through organizing, policy innovation, transformative education, and survival services. With nearly 9,000 members at our four community-based centers, we organize around workers' rights issues – including helping workers fight to for workplaces that are safe and healthy.

c. Go around the circle asking participants to introduce themselves by sharing:
   i. Their name
   ii. Their current job (or a recent job, if not working)
   iii. A movement that typifies what they do at work. (You can kick of the round by demonstrating: for instance, "I am a teacher" – and mime some aspect of teaching.)

→ Keep track of names and jobs/industries. You may divide groups according to jobs later in the day, if participants divide neatly into separate industries.

d. Review the brief agenda & goals for the day

Goal: For this group of ***community leaders and activists*** to learn about workplace hazards; workers' legal rights to a safe workplace; and tactics and strategies workers can use to minimize risks in the workplace. As leaders, participants will have the duty to share what they have learned with family, friends, and co-workers.

Ask participants to add any other goals to this basic mission statement.

Ask participants to set "Ground Rules" for the day – using the basics outlined above as a starting point.

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2) Introduction to Workers Health & Safety Issues — 10 minutes

GOAL: This activity is designed for the group to get a sense of how common unsafe working conditions are in the community. You will read a series of questions and ask those answering "yes" to physically signal their response without speaking.

- Step In/Step Out format. Ask everyone to stand in a large circle. Those answering "yes" to the question should take one step into the circle, while those answering "no" remain where they are.
- Stand Up/Sit Down format. If you do not have a lot of room, ask participants to simply stand up if their answer is "yes," or to remain seated if "no."

Questions *(create more question as are relevant to your participants)*

1) I have had to do work that I thought was unsafe at least once in a job.
2) I have seen others do work that I thought was unsafe.
3) I have been hurt on the job.
4) I have seen someone else get hurt on the job.
5) I have been hurt on the job so badly I had to go to the doctor.
6) I know someone who has been hurt so badly on the job they had to go to the doctor.

Reflection:
How do participants feel having done the exercise? What do they think about it?

3) Unknown Factory Story — 30 minutes

GOAL: This activity is intended to set the *historical stage* for worker safety and health issues, and to familiarize participants with phrases such as "workplace safety," "hazard," and "occupational safety." The handout [***Handout #1: Factory Story***] is the story of the historic Triangle Shirtwaist Factory fire, which occurred in 1911 near Washington Square Park in Manhattan.[3]

Note: the participant handout does not include the date, the name of the factory, the location, or any details about the workers. Have participants read the story aloud – and answer the discussion questions included on the handout and below. This exercise is intended to show workers how worker safety and health risks continue – despite tragedies like this fire.

Pass out Handout #1 to the group. If all participants are comfortable reading aloud, have each participant read 1-2 sentences, going around in a circle until the entire story is completed. If some participants are unable to read, ask for volunteers to read the story aloud.

[3] For more detailed information about this event, see http://www.ilr.cornell.edu/trianglefire/.

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Discussion Questions (also included on bottom of handout)

1) Where in New York City do you think this took place? What borough or neighborhood?
2) What kind of factory do you think it was?
3) What year do you think it happened?
4) How many days a week and hours a day do you think these workers worked?
5) Who do you think these workers were? Where were they from? Were the men or women? How old do you think they were?
6) What are some of the reasons this disaster happened?

As you facilitate a discussion, fill in the actual facts of the tragedy:

- The fire took place in New York City on March 25, 1911.
- The factory was located at 23-29 Washington Place, between Greene Street and Washington Square East in Manhattan, New York City (Greenwich Village).
- The Triangle Waist Company was one of the largest blouse makers in New York City, specializing in "shirtwaists," the very popular women's blouse of the era.
- 146 people died as a result of the fire: 129 women and 17 men.
- Many of the workers were young women, most of them Italian and European Jewish immigrants between 16 and 23 years old. Some were as young as 14.
- They worked nine hours a day on weekdays, plus seven hours on Saturdays (notably less than many garment factory workers today).

Current Day Snap Shot [Handout #2]

End by reviewing statistics about injury rates today, for example:[4]

- In 2009, the federal Bureau of Labor Statistics reported an average of 12 workers were killed *every day* on the job in the U.S. (Total 4,340 workers a year.)
- That same year, another 50,000 were killed from occupational disease – diseases caused by conditions at work.
- Estimates suggest that about 8 million to 12 million job injuries or illnesses occur every year.
- Latino workers continued to have a greater risk of job fatalities. There were 668 fatalities among Latino workers. Of those, 59% (393) were born outside the U.S.
- The first federal law to protect workers' health and safety on the job was not passed until 1970 – nearly 60 years after the Triangle Shirtwaist Factory Fire.

Discussion: Spend a few minutes asking workers to comment on why so many workers are still hurt on the job and why the rates of fatalities are higher for Latino workers.

[4] Statistics taken from the AFL-CIO Report *Death on the Job: The Toll of Neglect*, April 2001. Available at http://www.aflcio.org/issues/safety/memorial/doj_2011.cfm.

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**** 10 MINUTE BREAK ****

4) HAZARD MAPPING AT THE ABC GARMENT FACTORY 60 MINUTES

GOAL: for participants to start identifying safety hazards caused by physical risks – slippery floors, broken machinery, etc. These are often the most obvious hazards, and the first that participants identify.

GROUP BRAINSTORM: Ask for volunteers to give examples of a "hazard" on the job that might cause harm to a worker's safety or health. They can use examples from their own jobs, or using their imagination.

If participants give an example of an injury, e.g., a burn, ask them to give the *cause* of the injury, e.g., hot oil or an open flame. Explain that the cause of the injury is the workplace hazard.

As the list of examples grows, point out that hazards fall in to different categories:

1. Safety hazards: these are physical conditions that can cause harm, such as slippery floors, broken ladders, or high heat.
2. Chemicals exposure: hazardous chemicals (cleaning products, chemicals used in production, etc.) are common in many jobs.
3. Biological hazards: workers may get exposed to viruses or bacteria, blood, insects, or other biological hazards on the job.
4. Misc. hazards: this can include things like workplace violence.

Next, divide group up again into small groups of maximum 4 participants per group. You can either keep groups the same as earlier, or mix participants up. Tell participants they all work together at the ABC Garment Factory and that they are meeting after work one day to talk about some of the health and safety problems they are having on the job.

Distribute:

- Handout #3 – drawing of the ABC Garment Factory (one per participant)
- Handout #4 – the health & safety checklist

Review the example provided in the checklist to explain how to use the chart. If people still seem uncertain, ask them to share another example of a hazard with the group, and the effect or injury it might cause.

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From Handout #4:

HAZARD & LOCATION	EFFECT OR INJURY
Example: Meat slicer / sharp blade	Cuts

Ask the groups to spend 20 minutes looking at the drawing, and imagining that they work in that environment. What kind of safety risks are there? What might threaten their health? Ask them to write down every possible HAZARD or UNSAFE CONDITION that they think exists in the factory.

Emphasize that they should use their:

- EYES: imagine looking around at the factory
- EARS: imagine listening to the typical sounds
- NOSE: imagine what smells might be present

Each group should choose a name for their group and a Secretary to take notes. After about 15-20 minutes, reconvene as a large group. Taking turns, have each group read out one of the hazards they identified. On butcher paper at the front, write up the answers. Keep going around until all groups have shared all their hazards.

Explain that you will return to this exercise in a little while.

BREAK – 15 MINUTES

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5) HAZARD MAPPING CONT'D. – "INVISIBLE" HAZARDS 20 MINUTES

GOAL: to help participants identify not only safety hazards that are obvious to the eye, but other more "invisible" hazards. These hazards are sometimes identifiable more from the symptom than the hazard – you feel dizzy, your eyes water, your nose runs or itches, you get a headache, etc.

Transition from the factory exercise by explaining that workers are often exposed to "invisible" hazards – for example, chemical or biological exposure.

Distribute Handout #5, Maria's Nail Salon. Ask everyone to imagine that they work in this nail salon, six days a week, 10 hours a day. Have them study the drawing, taking note of possible hazards in the picture.

> Teaching trick → You can also bring a bottle of hairspray to class and spray a bit and/or a bottle of nail polish and nail polish remover that you simply open and leave sitting out for a few minutes.

Activity: explain that participants will each have the opportunity to act out, without using words, how they think they would *feel* after working in the nail salon for a few weeks. Ask for 4-5 volunteers to come to the front of the room to act out how they feel. Have the rest of the group guess what the symptoms are. Some examples could be: holding your head because it hurts; rubbing your eyes; blowing your nose: acting dizzy, etc. You can act out one to get the group started.

Questions:

(1) What might be causing these symptoms?
(2) How is this caused? (Skin contact, breathe in chemicals or fumes, drink it)

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6) HEALTH IMPACTS OF WORK HAZARDS 30 MINUTES

GOAL: to help participants further identify how hazards impact their body and their health, as they started to do with the nail salon exercise. Participants will identify both short-term problems – cuts, burns, accidents – as well as longer-term health impacts of hazards.

Provide each participant with a large piece of butcher paper, markers, and dot stickers in different colors. Ask them to draw the outline of their own body and label their page at the top with (1) their name and (2) their job. Ask them to take 10 minutes to put stickers on their body map indicating where they have pain, stress, or injuries from their job. Encourage them to note both immediate pains – from cuts or burns – as well as longer-term pains – muscle aches, breathing problems, etc.

If you prefer, you can ask participants to complete Handout #6 for the body mapping.

Report-back: depending on the group, you can have workers report-back in small groups divided by type of job or industry. If the large group is very diverse, in terms of types of jobs, create mixed groups and ask workers to spend 2 minutes per person explaining their body map to the group.

Large group discussion: Ask participants to share any reactions to what they learned from the activity. Did they see any patterns? What kinds of health impacts did participants notice most frequently? In leading the discussion, help the group identify and discuss longer-term health consequences of workplace hazards, such as long-term respiratory problems, ergonomic issues, etc.

**** 10 MINUTE BREAK ****

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7) IMPROVING SAFETY ON THE JOB 60 MINUTES

GOAL: Now that participants have identified hazards, and explored how hazards impact their health, these activities will help participants think about steps they can take to deal with hazards in the workplace.

Explain to participants that now that they have started identifying the hazards at the ABC Garment Factory and at Maria's Nail Salon, they are going to brainstorm ways to lessen or get rid of these hazards. Explain that their goals, in order of importance should be to:

REMOVE, CONTROL & PERSONAL PROTECTIVE EQUIPMENT.

This means:

1) Removing the hazard. The best option is to completely get rid of the hazard altogether. For example, you could substitute non-toxic materials or replace broken equipment. But….
2) Controlling the hazard. It is not always possible to *completely* remove a hazard. In that case, your next question should be: how can you control it? How can you minimize it? Consider both *administrative and engineering controls*.
    a. There might be *physical changes* – mats for slippery floors; guards on machines, that help lessen the danger.
    b. There might be way to train workers to work more safely, etc.
3) Protecting against the hazard. The last line of defense is to protect against the hazard by providing workers with personal protective equipment ("PPE") – like gloves, masks, etc.

Write (1) REMOVE, (2) CONTROL, (3) PPE on butcher paper at the front of the room.

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For 20 minutes in their small groups, have the participants revisit either the ABC Factory or Maria's Nail Salon (their choice), and brainstorm solutions using this chart from Handout #7:

Hazard	Solution
Example: Meat slicer / sharp blade	Guards on machine; training workers to use; lock-out to shut off machine if there is jam, etc.

As they brainstorm, they should:

(1) Include solutions that are specific and relevant to the situation;
(2) Indicate whether the solutions involve removing, controlling, or protecting against the hazard; and
(3) Note which solutions workers can take on their own, and which solutions require the employer to take action.
(4) Flag the 3-4 best solutions to a hazard that they are proposing.

Report back: each group should spend 5 minutes reporting back on the 3-4 best solutions they brainstormed as a group.

GROUP DISCUSSION: Ask for commentaries from the group based on the activity. Ask them in particular to talk about what solutions workers can implement on their own, and what solutions require the employer's involvement. As the facilitator, you should help manage the conversation – challenge the group when solutions are not realistic, raise other ideas that occur to you but that do not come out in the group discussion, etc.

BREAK FOR THE DAY.

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DAY TWO – APPROX. 4.5 HOURS

8) RE-ASSEMBLE FOR DAY 2 — 15 MINUTES

Welcome participants back to day two of the training. To start, have participants sit in a circle in a large group and going around, say their name and one thing that they learned or that impacted them from the first day's activities.

9) WORKERS' LEGAL RIGHTS — 45 MINUTES

GOAL: To orient the group to their basic legal rights under federal and state law to work in a safe and healthy workplace.

Remind participants about the activities they did at the end of the prior day: they identified hazards, and proposed solutions. Remind participants that some of the most important solutions they proposed require the employer to take steps.

Poll participants: what do you think the boss would do if you made these suggestions at work? Explain that you will now review workers' basic legal rights.

Ask the group to share:

1) the name of the federal law that protects workers' safety and health on the job
2) the name of the federal agency that enforces this law

→ Write up on the board or on paper "OSHA" – explain that OSHA, which is part of the Department of Labor, enforces the federal Occupational Safety and Health Act, the main law that protects workers on the job.

→ Ask the group to guess what year the law was passed: answer is 1970.

Explain that the OSH Act applies to:

1) Basically *all* workers and
2) It applies to workers regardless of their immigration status.[5]

OSHA works to:

1) develop rules about workplace safety;
2) enforce those rules through inspecting workplaces;
3) track workplace accidents; and

[5] Workers typically not covered by OSHA include the self-employed; immediate family members of farm employers who do not employ any outside employees; and workers covered under another federal law (such as mineworkers or those in the Coast Guard).

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4) train workers and employees on workplace health and safety.

Explain that you have 5 basic rights under OSHA. Ask group to brainstorm what these rights might be – write ideas up on the board. Then review the 5 key rights:

1) A healthy and safe workplace;
2) Information;
3) Training;
4) To request that an unsafe workplace situation be changed (and to file a complaint with OSHA about it); and
5) Protection from retaliation for reporting unsafe working conditions.

➢ Distribute Handout #8, workers rights under OSHA.

Go back one by one to discuss them in more depth.

1) **Healthy and safe workplace**:
    a. You have the legal right to work free from known hazards that can cause death or serious physical harm to you. This includes having tools and equipment that is in good condition an regularly maintained.
    b. Where an unsafe condition exists, an employer must first attempt to reduce a hazard to a safe level by using engineering or administrative control, for example by substituting less hazardous materials or work practices.
    c. If engineering and administrative controls cannot adequately reduce the hazard of the working condition, then an employer must provide a worker personal protective equipment (PPE) at no cost to the worker.

2) **Information**:
    a. Your rights as a worker – the OSHA poster. Distribute copies of the poster and ask if participants have seen it posted at their job.
    b. Information on dangerous chemicals used in your job.
        i. Explain that employers must have Material Safety Data Sheets for all hazardous chemicals used. Distribute the sample MSDS for review.
        ii. Employers are to provide training on hazardous chemicals that can be understood by the worker (including in the worker's primary language).
    c. Information on injuries or illnesses that happen at your worksite.
        i. If there are more than 10 workers on the job, the employer must keep an OSHA 300 log of all injuries and illnesses.
    d. Copies of your own medical records, if kept by the employer.

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3) **Training**: your employer must train you to perform your job safely, according to the OSHA rules that apply.

4) **Reporting unsafe working conditions**. You can:
   a. Ask your employer to correct unsafe working conditions;
   b. File a complaint with OSHA anonymously about the condition;
   c. Participate in the OSHA investigation and get information about the resolution.
   d. Workers should call OSHA immediately (1-800-321-OSHA) to report imminent dangers. To count as an "imminent" danger, there must be:
      i. A threat of death or serious physical harm (meaning such severe harm to a part of your body you will lose use or not be able to use it well).
      ii. Exposure to a health hazard (e.g., a chemical) that will shorten the worker's life or substantially reduce the worker's physical or mental abilities (harm does not have to happen immediately).

5) **Protection against retaliation**:[6]
   a. Your employer can't retaliate against you for reporting an unsafe condition or participating in an OSHA investigation. Report instances of retaliation to OSHA immediately, but no later than 30 days after it happens!

QUESTION: When can a worker refuse to do unsafe work and be protected against retaliation?

- OSHA does not necessarily protect a worker who refuses to do work as ordered by the employer, even if that work may be unsafe. Refusing work can result in discipline by the employer.
- However, if a worker reasonably believes, in good faith, that they are being exposed to an ***imminent danger***, the worker may refuse to perform the work as ordered.
  - "Good faith" means that even if an imminent danger is not found to exist, the worker had reasonable grounds to believe that it did exist.
  - As noted above, "imminent dangers" are serious, immediate dangers that are likely to cause serious injury.
- While you may have a right to refuse to engage in work that presents an imminent danger, you do not have the right to walk off the job.

[6] The information on retaliation is drawn nearly verbatim from OSHA's guide, found at: www.osha.gov/dte/outreach/intro_osha/intro_to_osha_guide.pdf.

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When might you decide to refuse to do work that presents an imminent danger? Your right to refuse to do a task is protected if **all** of the following conditions are met:

(1) Where possible, you have asked the employer to eliminate the danger, and the employer failed to do so; **and**

(2) You refused to work in "good faith." This means that you must genuinely believe that an imminent danger exists. Your refusal cannot be a disguised attempt to harass your employer or disrupt business; and

(3) A reasonable person would agree that there is a real danger of death or serious injury; and

(4) There isn't enough time, due to the urgency of the hazard, to get it corrected through regular enforcement channels, such as requesting an OSHA inspection.

When all of these conditions are met, you should take the following steps:

(1) Ask your employer to correct the hazard;

(2) Ask your employer for other work;

(3) Tell your employer that you won't perform the work unless and until the hazard is corrected; and

(4) Remain at the worksite until ordered to leave by your employer.

→ If your employer discriminates against you for refusing to perform the dangerous work, **contact OSHA immediately**.

When you file your complaint, you must demonstrate that:

1) You were engaged in activity protected under the Act, such as notifying your employer of an unsafe working condition;

2) Your employer knew about your protected activity; and

3) It was because of your protected activity that the employer took adverse action against you.

Adverse action is generally defined as any action that would dissuade a reasonable employee from engaging in protected activity. Depending upon the circumstances of the case, "adverse" action can include:

- Firing or laying off
- Blacklisting
- Demoting
- Denying overtime or promotion

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- Disciplining
- Denial of benefits
- Failure to hire or rehire
- Intimidation
- Making threats
- Reassignment affecting prospects for promotion
- Reducing pay or hours

Closing Discussion: Ask for questions or commentaries from the group.

BREAK – 10 MINUTES

10) FINAL SKIT — 75 MINUTES

GOAL: for participants to synthesize the information they have learned in an interactive activity that can be used to train other groups of workers.

Explain that each small group will have 25 minutes to prepare a skit that incorporates what they have learned from the training. Participants are free to choose the focus on their skit: they can revisit earlier activities/examples and use those for the substance of the skit; they can "invent" a workplace; or they can use an example from their own lives. Emphasize that the groups will have limited time to develop their full skit, so they should focus on building the skit rather than spending time choosing a topic.

The skits should be 8-10 minutes long. Each skit should:

1) Illustrate a group of workers dealing with some kind of hazard at their job;
2) Make clear what the hazard is that is a problem;
3) Show what harm that hazard is causing;
4) Illustrate tactics the workers can use to lessen the risk of the hazard.

Give the groups 25 minutes to prepare and practice their skits. You can reconfigure groups so that there are 4 small groups who will then perform their skit to the large group. Have each group perform their skit, and give 5 minutes after the skit for group feedback.

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11) POST-TEST, REFLECTION, AND PLAN OF ACTION — 75 MINUTES

GOAL: to review what participants have learned, what they liked best about the training, how they will use their knowledge to reach other workers, and goals in their own jobs.

Have participants go around in a circle and share with the group, in one minute or less:

- → One thing they learned at the training;
- → One thing they will do differently in their job based on what they learned; and
- → One idea about how they can share what they have learned with other workers.

Distribute the Post-Test and ask participants to spend 10 minutes completing it. Collect the tests.

After collecting the tests, spend 5-10 minutes taking questions from participants. Was there anything they didn't remember or had questions about, especially after taking the test? Any areas where they would like more information?

Next: distribute Handout #9, the Plan of Action. Explain to participants that they should now each spend 10 minutes on their own, thinking about what commitment they can make to sharing the information they learned with their community.

Have participants break up in to their small groups and spend 15 minutes presenting their Plans of Action to each other. Come back as a large group, and ask participants to share any last thoughts or ideas with the large group.

If you have prepared certificates ahead of time, distribute certificates to participants. (If not, tell participants you will mail them their certificate.)

End with a Unity Clap. Have participants stand in a circle, and begin clapping in unison slowly. Slowly increase the speed of clapping, and as the momentum builds, the group converges in the middle with a shout of "Sí se puede!" or "Yes we can!"

END OF TRAINING.

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HANDOUT 1: NEW YORK CITY FACTORY FIRE

March 25, 4:40pm. A fire breaks out in a factory in a 10-story building. There is no fire alarm in the factory, which occupies the 8th, 9th, and 10th floors. Workers on the 8th floor phone upstairs to workers on the 10th to warn them. But there is no way to contact workers on the 9th floor.

Workers begin to panic, desperate to escape the spreading fire. But there is only a small elevator located in the back of the building and one stairway. Every day, the managers lock all the other doors, exits, and the front elevator to prevent employee "theft."

The building has only one fire escape, which is poorly built and in disrepair. It quickly gives way, causing workers to fall nearly 100 ft.

The fire department arrives on the scene, but their ladders only reach the 6th floor. They unwind their hoses, but water pressure is weak – and the stream of water only reaches the 7th floor. Their nets are weak, and fail to hold workers leaping from the burning building.

The building doors open inwards, rather than out, causing further chaos as panicked workers try to flee.

By the end of the disaster, 146 of the approximately 500 workers in the factory died that day. Sixty-two of those who died had jumped, fallen or were pushed from the top floors windows.

Tragically, there had already been four fires reported in this factory previously. Investigations later showed the fire started when a cigarette was thrown in a waste bin that had accumulated over two months' worth of trash.

Questions for Discussion:

1. Where in New York City do you think this took place? What borough or neighborhood?
2. What kind of factory do you think it was?
3. What year do you think it happened?
4. How many days a week and hours a day do you think these workers worked?
5. Who do you think these workers were? Where were they from? Were the men or women? How old do you think they were?
6. What are some of the reasons this disaster happened?

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HANDOUT #1: INCENDIO EN UNA FÁBRICA DE NUEVA YORK

25 de marzo, 4:40pm. Comienza un incendio en una fábrica localizada en un edificio de 10 pisos. No hay alarma de incendios en la fábrica, que ocupa el octavo, noveno y décimo piso. Los trabajadores en el octavo piso llaman por teléfono a los trabajadores del décimo piso para advertirles. Sin embargo no hay forma de contactar a los trabajadores del noveno piso.

Los trabajadores entran en pánico, desesperados por escapar del incendio que se va extendiendo por toda la fábrica. Pero sólo hay un ascensor pequeño localizado en la parte de atrás del edificio y unas escaleras. Todos los días, los gerentes cerraban las demás puertas, salidas y el otro ascensor en la parte frontal al edificio para prevenir que los empleados "robaran" mercancía.

El edificio sólo tiene una escalera de incendios, que está mal construida y en mal estado. Rápidamente se descompone, provocando que los trabajadores caigan desde una altura de casi 100 pies.

El departamento de incendios llega al lugar, pero sus escaleras sólo llegan al sexto piso. Utilizan sus mangueras, pero la presión de agua es débil, y la corriente de agua sólo llega el séptimo piso. Las redes son débiles, y no logran para atrapar a las personas que van cayendo desde el edificio en llamas.

Las puertas del edificio abren hacia adentro en vez de hacia afuera, causando aún más caos mientras los trabajadores están desesperados por salir.

Al final de la catástrofe, 146 de los aproximadamente 500 trabajadores en la fábrica murieron ese día. 62 de las víctimas saltaron, se cayeron o fueron empujados desde las ventanas del edificio.

Trágicamente, ya habían ocurrido cuatro incendios en esta fábrica anteriormente. Al hacer una investigación del incidente, se cree que el incendio comenzó al echar un cigarrillo en un cubo de basura que tenía acumulada la basura de aproximadamente 2 meses.

Preguntas de discusión

1. ¿En qué lugar de Nueva York crees que ocurrió este evento? ¿En qué barrio o vecindario?
2. ¿Qué tipo de fábrica crees que era?
3. ¿En qué año crees que sucedió?
4. ¿Cuántos días a la semana y horas al día crees que estos trabajadores trabajaban?
5. ¿Quiénes crees que eran estos trabajadores? ¿De dónde eran? ¿Eran hombres o mujeres? ¿Qué edades crees que tenían?
6. ¿Cuáles son algunas de las razones por las cuales sucedió este desastre?

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HANDOUT #2: STATISTICS ON WORKER HEALTH & SAFETY[7]

- In 2009, an average of 12 workers were killed *every day* on the job in the U.S. (Total 4,340 workers a year.)

- That same year, another 50,000 were killed from occupational disease – diseases caused by conditions at work.

- Estimates suggest that about 8 million to 12 million job injuries or illnesses occur every year.

- Latino workers continued to have a greater risk of job fatalities.
  - There were 668 fatalities among Latino workers;
  - Of those, 59% (393) were born outside the U.S.

- The Triangle Shirtwaist Factory Fire happened in 1911. The first federal law to protect workers' health and safety on the job was not passed until 1970 – nearly 60 years later.

[7] Statistics taken from the AFL-CIO Report *Death on the Job: The Toll of Neglect*, April 2011. Available at http://www.aflcio.org/issues/safety/memorial/doj_2011.cfm.

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HANDOUT # 2: ESTADÍSTICAS DE SALUD Y SEGURIDAD DE LOS TRABAJADORES[8]

- En el 2009, un promedio de 12 trabajadores perdieron la vida todos los días en el trabajo en Estados Unidos (Un total de 4,430 trabajadores al año).

- Ese mismo año, otros 50,000 murieron como causa de lesiones y enfermedades ocupacionales causadas por condiciones en el trabajo.

- Se estima que ocurren anualmente aproximadamente entre 8 y 12 millones de lesiones o enfermedades ocupacionales.

- Los trabajadores latinos continuaron teniendo el mayor riesgo de perder la vida en el trabajo.
    - Hubo 668 muertes entre trabajadores latinos.
    - De ellos, el 59% (393) nacieron fuera de los Estados Unidos.

- El incendio de la "Triangle Shirtwaist Factory" ocurrió en 1911. La primera ley para proteger la salud y seguridad de los trabajadores no fue aprobada hasta 1970 – casi 60 años más tarde.

[8] Información de AFL-CIO Report *Death on the Job: The Toll of Neglect*, April 2011 de http://www.aflcio.org/issues/safety/memorial/doj_2011.cfm.

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HANDOUT #3: ABC FÁBRICA DEL▪ ROPA ABC GARMENT FACTORY

¿PUEDEN IDENTIFICAR LOS RIESGOS EN ESTE LUGAR DE TRABAJO? ▪ CAN YOU IDENTIFY THE HAZARDS IN THIS PICTURE?

Source: Your Rights at Work, an ESL Workbook, (1997, UNITE).

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HANDOUT #4: RIESGOS / HAZARDS

RIESGO & LOCALIZACIÓN / HAZARD & LOCATION	EFECTO O LESIÓN / EFFECT OR INJURY
Ejemplo / Example: Cuchilla afilada / Meat slicer, sharp blade	Cortes / Cuts
1)	
2)	
3)	
4)	
5)	
6)	

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7)	
8)	
9)	
10)	
11)	
12)	
13)	

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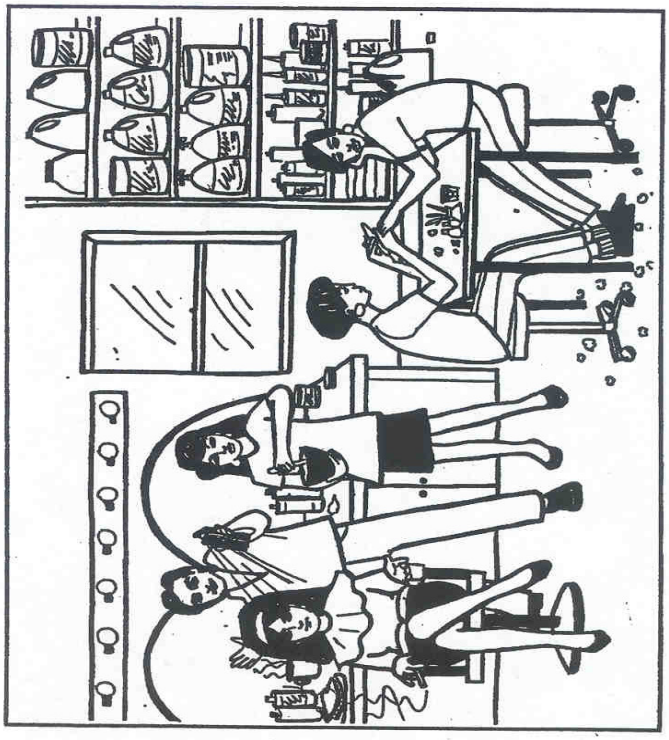
HANDOUT #5: EL SALÓN DE UÑAS DE MARÍA ▪ MARIA'S NAIL SALON

¿PUEDEN IDENTIFICAR LOS RIESGOS EN EL DIBUJO? ▪ CAN YOU IDENTIFY THE HAZARDS IN THIS PICTURE?



Source: Taking Action for a Safe Workplace, NYCOSH (2005).

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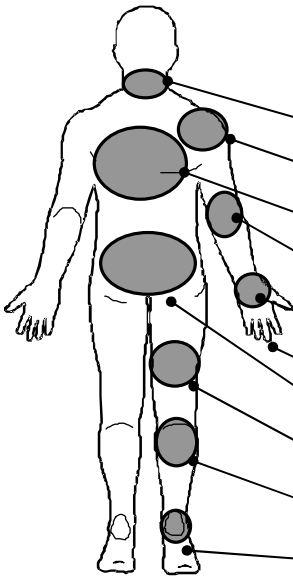
HANDOUT #6: EJERCICIO DE MAPEO CORPORAL

Trabajo: _____

Tareas principales: _____

_____

1. Indique la parte o el área del cuerpo que le ocasiona molestias y el nivel de dolor o malestar que experimentó:



Parte del cuerpo	Nivel de dolor o malestar		
	Apenas perceptible	Moderado	Intolerable
☐ Cuello			
☐ Hombro			
☐ Parte alta de la espalda			
☐ Codo/Antebrazo			
☐ Muñeca/Mano			
☐ Dedos			
☐ Parte baja de la espalda			
☐ Cadera/Muslo			
☐ Rodilla			
☐ Tobillo/Pie			

2. Marque la(s) palabra(s) que mejor describen su problema:

☐ Dolorido ☐ Quemazón ☐ Calambres ☐ Entumecimiento ☐ Dolor ☐ Hinchazón

☐ Rigidez ☐ Le pica ☐ Debilidad ☐ Decoloración ☐ Otro

3. ¿Cuánto dura cada episodio? (marque con una "**X**" sobre la línea)

_____/ _____/ _____/ _____/ _____/ _____/
(1 hora) (1 día) (2-3 días) (1 semana) (1 mes) (6 meses)

4. ¿Cuál cree que fue la causa del problema? _____

_____

5. Escriba un comentario sobre lo que cree que mejoraría sus síntomas. _____

_____

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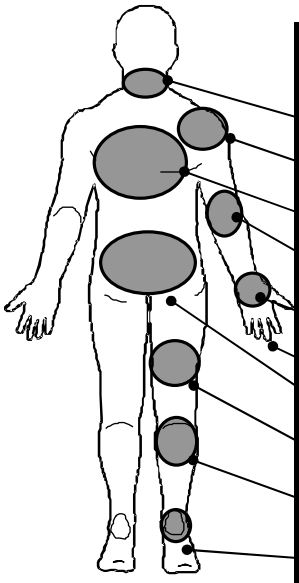
HANDOUT #6: BODY MAPPING

Job: _____

Principal responsibilities: _____

_____

1. Indicate the parto r area of your body that bothers you and the level of pain or discomfort that you experience:



Part of the body	Level of pain or discomfort		
	Just noticeable	Moderate	Intolerable
☐ Neck			
☐ Sholder			
☐ Upper back			
☐ Upper arm			
☐ Wrist/hand			
☐ Fingers			
☐ Lower back			
☐ Thigh			
☐ Knee			
☐ Ankle/foot			

2. Check the words that best describe the problem.

☐ Sore ☐ Burning ☐ Cramps ☐ Numbness ☐ Pain ☐ Swelling

☐ Stiffness ☐ Itchy ☐ Weakness ☐ Discoloration ☐ Other

3. How long does each episode last?

_____/ _____/ _____/ _____/ _____/ _____/
(1 hour) (1 day) (2-3 day) (1 week) (1 month) (6 months)

4. What do you think caused the problem? _____

_____

5. What do you think improves your symptoms? _____

_____

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HANDOUT #7: SOLUCIÓNES / SOLUTIONS

RIESGO / HAZARD	SOLUCIÓN / SOLUTION
Ejemplo / Example: Cuchilla afilada / Meat slicer, sharp blade	Protectores en la cuchilla. Guards on blade.
1)	
2)	
3)	
4)	
5)	
6)	

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HANDOUT #8: WORKERS' RIGHTS UNDER OSHA

Workers, regardless of immigration status, have the following rights under OSHA:

1) **A healthy and safe workplace**, free from known ***hazards*** that can cause death or serious physical harm.
    a. If an unsafe condition exists, your employer must try to control the hazard, for example by substituting less hazardous materials or work practices.
    b. If the hazard cannot be completely controlled, your employer must provide you personal protective equipment (PPE) to protect you from the hazard.

2) **Information** about:
    a. Dangerous chemicals used in your job.
    b. Information on injuries or illnesses that happen at your worksite.
        i. If there are more than 10 workers on the job, the employer must keep an OSHA 300 log of all injuries and illnesses.
    c. Your rights as a worker.

3) **Training** about how to perform your job safely, according to the OSHA rules that apply.

4) **Reporting unsafe working conditions**. You can:
    a. Ask your employer to correct unsafe working conditions. For imminent dangers, workers should call OSHA immediately (1-800-321-OSHA).
    b. File a complaint with OSHA anonymously about the condition.
    c. Participate in OSHA investigations and get information about the resolution.

5) **Protection against retaliation**:
    a. Your employer can't retaliate against you for reporting an unsafe condition or participating in an OSHA investigation. Report instances of retaliation to OSHA immediately, but no later than 30 days after it happens!
    b. Examples of what may count as retaliation include: firing or laying off, blacklisting, demoting, denying overtime or promotions, discipline, intimidation, threats, reduction of hours or pay, etc.

CONTACT OSHA by calling: (1-800-321-OSHA) or visiting the website at www.osha.gov.

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HANDOUT #8: DERECHOS DE LOS TRABAJADORES BAJO OSHA

Los trabajadores, independientemente de su estatus migratorio, tienen los siguientes derechos bajo OSHA:

1. **Un lugar de trabajo saludable**, libre de riesgos reconocidos que puedan causar la muerte o daños físicos graves.
    a. Si existe una condición no segura, tu patrono tiene que intentar controlar el riesgo, por ejemplo sustituyendo los materiales peligrosos por materiales menos peligrosos o modificando las prácticas de trabajo.
    b. Si el riesgo no se puede controlar completamente, tu patrono debe proveerte equipo de protección personal (EPP) para protegerte del riesgo.

2. **Información** acerca de:
    a. Sustancias químicas peligrosas utilizadas en tu lugar de trabajo.
    b. Información de lesiones o enfermedades que han sucedido en tu trabajo.
        i. Si hay más de 10 trabajadores, el patrono debe tener un registro OSHA 300 de todas las lesiones y enfermedades.
    c. Tus derechos como trabajador.

3. **Entrenamiento** acerca de cómo desempañarte en tu trabajo seguramente, de acuerdo a las normas de OSHA que apliquen.

4. **Reportar condiciones de trabajo no seguras**. Puedes:
    a. Pedirle al patrono que corrija condiciones de trabajo no seguras. Para peligros inminentes, los trabajadores deben contactar a OSHA inmediatamente (1-800-321-OSHA).
    b. Presentar una queja a OSHA anónimamente acerca de la condición.
    c. Participar en investigaciones de OSHA y obtener información acerca del resultado.

5. **Protección en contra de represalias:**
    a. Tu patrono no puede tomar represalias en tu contra por reportar una condición no segura o participar en una investigación de OSHA. Reporta casos de represalias a OSHA inmediatamente, ¡pero no más tarde de 30 días después de que suceda!
    b. Ejemplos de lo que puede considerarse como represalias incluyen: despidos, descensos en el puesto de trabajo, negar horas extra o ascensos, disciplina, intimidación, amenazas, reducción en horas de trabajo o paga, etc.

Contacte a OSHA llamando al: (1-800-321-OSHA), o visitando su página web: www.osha.gov.

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HANDOUT #9: PLAN OF ACTION

Name: _____

Date: _____

I have the following three goals for teaching workers about their health & safety rights:

1) _____

2) _____

3) _____

My target audience for sharing this information is:

_____

My specific, concrete plan for outreach/training is to (provide an estimate of how many workers you plan on training, where, etc.):

_____

If I have questions or need more information, I will turn to this person/organization for help:

_____

Signed: _____

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HANDOUT #9: PLAN DE ACCIÓN

Nombre:_____

Fecha:_____

Tengo las siguientes tres metas para enseñarle a los trabajadores acerca de sus derechos en salud y seguridad:

1) _____

2) _____

3) _____

El tipo de audencía con el que quiero compartir esta información es:

_____

Mi plan específico y concreto para entrenar es: (provea un estimado de cuántos trabajadores planifica entrenar, dónde, etc.):

_____

Si tengo preguntas o necesito más información, acudiré a esta persona/organización a buscar ayuda:

_____

Firma:

_____

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TRAINING SIGN-IN SHEET

Date: _____ **Location:**_____

Trainer(s): _____ **Training Topic** _____

Start Time: _____ **End Time:** _____

Participant Name **Phone Number**

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

I hereby certify that the above information is accurate and true.

_____

Trainer/Facilitator's Name and Signature

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HOJA DE REGISTRO DEL ENTRENAMIENTO

Fecha:_____ **Lugar**:_____

Entrenador (es): _____ **Asunto de Taller**_____

Empieza a las : _____ **Termina a las:** _____

Nombre **Número de teléfono**

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

Certifico que la información es exacta y verdadera.

_____

Nombre del Entrenador / Firma

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POST-TEST FOR PARTICIPANTS

Topic: _____ Date: _____

Instructor's Name: _____

1. What is the name of the government agency that protects workers' health and safety rights?

   _____

2. Give three examples of workers who are covered by the federal safety and health law at their jobs?

   _____

3. Does the federal OSHA law apply to workers who are undocumented?

   Yes No

4. Give three examples of legal rights of workers under the federal safety and health law:

   a. _____

   b. _____

   c. _____

5. A worker has a legal right to refuse to do work in which case (choose one):

   a. Any time there is an unsafe condition;
   b. Once the worker has already been injured;
   c. Never;
   d. When the worker reasonably believes there is an imminent threat of serious injury.

6. Give an example of a workplace hazard and how a worker or the employer can address the problem.

   _____

   _____

   _____

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PRUEBA PARA PARTICIPANTES

Tema: _____ Fecha: _____

Nombre del instructor: _____

1. ¿Cuál es el nombre de la agencia de gobierno que protege los derechos de salud y seguridad de los trabajadores?

   _____

2. Dé tres ejemplos de trabajadores que están cubiertos por la ley federal de salud y seguridad en sus trabajos.

   _____

3. ¿La ley federal de OSHA aplica a trabajadores que no tienen documentos?

   Si No

4. Dé tres ejemplos de derechos legales de los trabajadores bajo la ley federal de salud y seguridad ocupacional:

   a. _____

   b. _____

   c. _____

5. Un trabajador tiene el derecho legal de negarse a hacer un trabajo en qué caso (elija uno):
   a. En cualquier momento que haya una condición no segura;
   b. Cuando el trabajador se haya lastimado;
   c. Nunca;
   d. Cuando el trabajador razonablemente cree que hay una amenaza inminente de lesión grave.

6. Dé un ejemplo de un riesgo en el lugar de trabajo y cómo un trabajador o patrono puede resolver el problema.

   _____

   _____

   _____

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